

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO. 756-26-3-6045-0073		PAGE 1 OF 53		
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30								
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C25726Q0483		
						6. SOLICITATION ISSUE DATE 05-05-2026		
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Melanie Williams			b. TELEPHONE NO. (No Collect Calls) 210-694-6378		8. OFFER DUE DATE/LOCAL TIME 05-21-2026 1:00 CDT	
9. ISSUED BY Department Of Veterans Affairs Network Contracting Office 17 5441 Babcock Road Ste. 302 San Antonio TX 78240				10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) NAICS: 561730 SIZE STANDARD: \$9.5 Million				
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A		
						14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP		
15. DELIVER TO Department of Veterans Affairs El Paso VA Clinic 5001 N. Piedras St. El Paso TX 79936				16. ADMINISTERED BY Department Of Veterans Affairs Network Contracting Office 17 5441 Babcock Road Ste. 302 San Antonio TX 78240				
17a. CONTRACTOR/OFFEROR		FACILITY CODE		18a. PAYMENT WILL BE MADE BY				
				This is accomplished through the Tungsten Network located at: http://www.fsc.va.gov/einvoice.asp This is mandatory and the sole method for submitting invoices. PHONE: (877) 353-9791 FAX: (512) 460-5540				
TELEPHONE NO. UEI: EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM				
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER								
19. ITEM NO.		20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT		
						23. UNIT PRICE		
						24. AMOUNT		
		The contractor shall perform all grounds maintenance work necessary to ensure the facility grounds are maintained in accordance with the Performance Work Statement (PWS) The ensuing contract from this solicitation will be for a base 1-year contract plus four (4) 1-year option periods. See addendum to FAR 52.212-1 for additional information. (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page				26. TOTAL AWARD AMOUNT (For Govt. Use Only)				
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA				☐ ARE ☒ ARE NOT ATTACHED. ☐ ARE ☐ ARE NOT ATTACHED				
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:				
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)				
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Isela Loveless Contracting Officer		31c. DATE SIGNED		

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR: TBD

b. GOVERNMENT: **Contract Specialist** - Melanie Williams

melanie.williams5@va.gov

Department of Veterans Affairs

Network Contracting Office (NCO) 17

5441 Babcock Road, Suite 302

San Antonio, TX 78240

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[X] 52.232-33, Payment by Electronic Funds Transfer—System For Award Management.

3. INVOICES: Monthly in arrears.

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PERFORMANCE WORK STATEMENT

Performance Work Statement (PWS)

Ground Maintenance Services

1. Title, Place of Performance, and Period of Performance

Title: Grounds Maintenance Services – El Paso VA Healthcare System

Place of Performance: All work under this contract shall be performed at El Paso VA Healthcare System (EPVAHCS). Services shall be executed across all designated exterior grounds, landscaped areas, and facility perimeters as defined in this Performance Work Statement (PWS).

Place of Performance:

El Paso VA Clinic
5001 N. Piedras St.
El Paso, TX 79936

Period of Performance:

Base: 6/15/2026 – 6/14/2027
Option Year 1: 6/15/2027 – 6/14/2028
Option Year 2: 6/15/2028 – 6/14/2029
Option Year 3: 6/15/2029 – 6/14/2030
Option Year 4: 6/15/2030 – 6/14/2031

2. Purpose

The purpose of this PWS is to define the requirements and standards for the provision of comprehensive grounds maintenance services at the EPVAHCS. The contractor shall perform all work necessary to ensure the facility grounds are maintained in a clean, safe, healthy, and aesthetically pleasing condition in accordance with this PWS and all applicable regulations, codes, and directives. These services are intended to support the Department of Veterans Affairs' mission of providing a welcoming, professional, and well-maintained environment for patients, staff, and visitors.

3. Scope of Work

The contractor shall provide all labor, materials, equipment, supervision, and management necessary to perform comprehensive grounds maintenance services at the EPVAHCS. The contractor shall maintain all landscaped, and hardscaped areas of the campus in a safe, clean, and aesthetically appealing condition in accordance with this PWS and all applicable regulations and standards. Lawn mowing, trimming, edging, and pest control.

Services to be Provided Include:

- Lawn mowing
- Trimming and Edging
- Lawn aeration and dethatching

- Lawn seeding
- Street and parking lot sweeping
- Leaf and debris removal, including seasonal spring and fall cleanups
- Weed control and removal
- Chemical treatments, including fertilization and weed control
- Tree Removal
- Tree and shrub care
- Irrigation system maintenance and repair
- Pest and disease control

4. Detailed Performance Requirements

Lawn Mowing: As needed only upon request

The contractor shall, upon request from the Contracting Officer Representative (COR), provide lawn mowing services at additional cost. After written request from COR, the contractor shall provide an estimate for mowing service to the Contracting Officer (CO) who will determine pricing to be fair and reasonable. Cost for mowing services will be for labor and equipment and be invoiced separately from monthly invoices. Mowing services to be invoiced against Not to Exceed CLIN after CO approval.

- The contractor shall remove debris from the lawns prior to the mowing operation (sticks, rocks, paper, trash, etc.).
- The contractor shall, upon request, mow the grass height between two (2) and three (3) inches within seventy-two (72) hours of CO authorization to perform work.
- The contractor shall not mow so close to trees, hedges, shrubs, buildings, building service equipment, sprinkler heads, sprinkler release valves, etc. as to cause damage to vegetation or facility structure by the lawn mowing equipment. The contractor is required to use appropriate equipment to match the 2-3-inch lawn height around the areas that cannot be mowed by larger lawn mowing equipment.
- The contractor must remove all clippings the same day and such clippings will be taken to an off-site disposal.

Trimming and Edging- As needed only upon request

- The contractor shall perform trimming and edging upon request from COR. The contractor shall ensure that all trimmed areas are maintained at a uniform grass height consistent with the surrounding lawn, typically between two (2) and five (5) inches, unless otherwise directed by the COR. After written request from COR, the contractor shall provide an estimate for trimming and edging services to the CO, and no work shall commence without prior authorization from the CO. Cost for trimming and edging services will be for labor and equipment and be invoiced separately from monthly invoices. Trimming and edging services shall be completed within seventy-two (72) hours of CO authorization to perform work. Trimming and edging services to be invoiced against Not to Exceed CLIN.
- Trimming shall be defined as the cutting and removal of grass and/or weeds growing adjacent to and horizontally over edges of walkways, driveways, curbs, flower beds, poles,

flagpole holes, posts, buildings, ditches, fire hydrants, trees, fence lines, parking lots, or other permanent structures.

- Edging shall be defined as the creation and maintenance of a clean, sharp line providing a distinct demarcation between lawns and adjoining hard surfaces, such as sidewalks, driveways, and curbs. Edging shall be performed in a neat and uniform manner to preserve the professional appearance of the grounds.
- The contractor shall perform weed whacking and trimming of native vegetation located on EPVAHCS Main Campus. All vegetation within this area shall be maintained in a neat and controlled condition consistent with safety and operational requirements. The Contractor shall remove, collect, and dispose of all resulting debris off-site in accordance with applicable regulations following each trimming.
- Under no circumstances shall the Contractor use herbicides or chemical vegetation control agents for trimming or edging purposes unless prior written approval is granted by the COR.
- Upon completion of trimming and edging activities along sidewalks, driveways, curbs, and adjacent areas, the Contractor shall collect all resulting debris and transport it to an off-site disposal facility. The Contractor shall ensure that no clippings, residue, or related materials remain on any paved or finished surfaces.

Lawn Aeration and Dethatching

- The contractor shall perform complete aeration of all lawn areas annually during the month of March, in accordance with standard commercial landscaping practices approved by the COR. Aeration shall be performed to promote root growth, improve water infiltration, and enhance overall turf health.
- The contractor shall perform dethatching of all lawn areas annually, in addition to aeration, as directed by the COR. These services shall be conducted in accordance with standard practice of the trade and scheduled to minimize disruption to turf recovery and growth.
- Prior to performing any aeration or dethatching activities, the Contractor shall locate and clearly mark all sprinkler heads, valve boxes, irrigation lines, and other underground facilities to prevent damage.
- The contractor shall be fully responsible for any damage resulting from aeration or dethatching operations. Any damaged irrigation components, turf, or site infrastructure shall be repaired or replaced by the contractor at no additional cost to the Government and to the satisfaction of the COR.
- All debris generated from aeration or dethatching operations shall be collected, removed from the site, and disposed of in accordance with all applicable federal, state, and local regulations.

Lawn Seeding

- The contractor shall perform lawn seeding services on a seasonal basis in accordance with the standard practice of the trade. Seeding shall be performed after annual lawn aeration and dethatching. Contractor shall provide comprehensive maintenance plan to the COR prior to seeding to promote vigorous growth and overall turf health. The contractor shall include irrigation schedule, mowing height and frequency, and all other turf growing

recommendations as part of comprehensive maintenance plan for VA maintenance staff to follow after contractor seeding.

- The contractor shall be responsible for providing all equipment, material, and labor to perform lawn seeding services in accordance with commercial landscaping practices at no additional cost.

Street and Parking Lot Sweeping

- The Contractor shall perform street and parking lot sweeping services on a seasonal basis as described in bullet #3 using an industrial sweeper. Sweeping shall include all paved streets, access roads, drive lanes, fire lanes, and paved parking lots within the designated areas of the EPVAHCS campus, including adjacent curbs and gutters.
- The contractor shall remove accumulated sand, gravel, leaves, litter, and other debris from all paved streets and parking garage/lots to maintain a clean, safe, and professional appearance and to prevent debris from entering storm drains. All sweeping operations shall be performed in a manner that minimizes dust, noise, and disruption to facility operations. All sweeping operations shall be conducted on Saturday or Sunday when the clinic parking lot and garage are most empty to avoid disruption of facility operations.
- The contractor shall perform sweeping at a minimum in early spring following winter sanding and de-icing activities; in late spring; in late fall following the primary leaf-fall period; and, if weather and site conditions permit, in mid-winter. Additional sweeping events shall be performed as directed by the COR and at additional cost when debris accumulation presents a safety hazard, degrades appearance, or threatens to obstruct stormwater drainage. After written request from COR, the contractor shall provide an estimate for additional street and parking lot sweeping service to COR, and no work shall commence without prior authorization from the CO. Cost for additional street and parking lot sweeping service will be for labor and equipment and be invoiced separately from monthly invoices. Additional street and parking lot sweeping service to be invoiced against Not to Exceed CLIN after CO approval.
- The contractor shall use an industrial, truck-mounted or equivalent mechanical or vacuum sweeper suitable for commercial and institutional facilities. All equipment should be maintained in good working order and operated by trained personnel in accordance with manufacturer instructions and applicable safety regulations.
- All swept material and debris shall be collected, removed from the VA property, and disposed of off-site in accordance with federal regulations. The contractor shall ensure that no piles or windrows of debris are left on-site and that all work areas are left in a clean condition upon completion of sweeping operations.

Leaf and Debris Removal

- The contractor shall perform all leaf and debris removal services necessary to maintain a clean and orderly appearance across all designated areas. These services shall be performed monthly, during the non-growing season as needed, following significant weather events such as windstorms or heavy rainstorms, and at the request of the COR. Services shall include removal of leaves, branches, and other organic or windblown debris from lawns, planter beds, landscaped areas, hardscaped areas, around trees, shrubs, and

bushes, stairwells, loading docks, sidewalks, streets, parking lots, road gutters, window wells, retention ponds, and around or behind buildings and exterior service equipment.

- All leaves and debris collected during monthly cleanups, as well as during regular maintenance operations, shall be removed from the site and disposed of in accordance with all applicable state and local regulations.
- The contractor shall ensure that cleanup operations do not obstruct walkways, parking areas, or building entrances at any time. All equipment and debris shall be removed from the site upon completion of each cleanup event.

Weed Control and Removal

- The contractor shall perform all weed control and removal services necessary to maintain a clean and orderly appearance across all designated areas. These services shall be performed bi-weekly during growing season, monthly during the non-growing season, and at the request of the COR. Services shall include removal of broadleaf weeds, grassy weeds, and other common weeds from lawns, planter beds, landscaped areas, hardscaped areas, around trees, shrubs, and bushes, stairwells, loading docks, sidewalks, streets, parking lots, road gutters, window wells, and around or behind buildings and exterior service equipment.
- The contractor shall be responsible for providing all equipment, material, and labor to perform weed control and removal services in accordance with commercial landscaping practices and at no additional cost.

Chemical Treatments and Applications

- COR requesting approval from the CO is required at least seven (7) days prior to application.
- Upon contract award, the Contractor shall provide Material Data Safety Sheets (MSDS) or Safety Data Sheets (SDS) for any chemicals proposed for use and will submit a proposed schedule of all chemical applications.
- Lawn applications shall be completed in eight (8) hours or less due to irrigation schedule.
- The first application shall include pre-emergent for crabgrass control, as well as a granular slow-release fertilizer and broadleaf control. This shall be applied no later than the 1st of May.
- The second, third, and fourth applications shall consist of fertilization and broadleaf control. The third application again is required to be a granular slow-release product.
- The contractor shall provide a fifth "winterization" lawn treatment consisting of a balanced winter fertilizer and compatible weed control product applied at the end of the growing season, in accordance with manufacturer recommendations and COR- approved schedules and materials.
- The contractor shall apply a minimum three (3) annual sterilant applications in the hardscape areas, more may be required as directed by the COR and at additional cost.
- Use of 2,4-D-based and 2,4,5-T-related products is not permitted.
- All applicators must be licensed in accordance with EPA regulations, if applicable.

Tree Removal

- The contractor shall remove accumulated dead trees from designated areas on the North end of the lawn. This is a one-time service and invoiced against Tree Removal CLIN of Base Year Contract.
- The contractor shall, upon request from COR, provide additional tree removal services at additional cost. After written request from CO, the contractor shall provide an estimate for additional tree removal services to the CO, and no work shall commence without prior authorization from the CO. Cost for additional tree removal services will be for labor and equipment and be invoiced separately from monthly invoices. Additional tree removal services shall be invoiced against Not to Exceed CLIN.

Tree and Shrub Care

- The contractor shall perform all tree and shrub care necessary to maintain healthy, safe, and aesthetically pleasing condition throughout the contract period. All work shall be performed in accordance with accepted horticultural and arboricultural standards of the trade and subject to approval by the CO.
- The contractor shall provide fertilization of trees and shrubs as needed to promote vigorous growth and overall plant health. Fertilization shall be performed using methods and materials appropriate for the species, soil conditions, and seasonal requirements. Fertilizer type, application rate, and schedule shall be submitted to the COR for approval prior to application and authorized to proceed with work by the CO only.
- The contractor shall perform pruning of trees and shrubs as required to remove dead, diseased, or damaged limbs; promote healthy growth; maintain proper form and clearance; and prevent interference with buildings, walkways, lighting, signage, and utilities. All pruning shall be performed in accordance with ANSI A300 industry standards.
- The contractor shall monitor trees and shrubs for evidence of disease, infestation, or pest activity. When problems are identified, the Contractor shall promptly notify the COR and submit a recommended treatment plan within five (5) business days. Pest control measures, including application of pesticides or fungicides, shall not be performed without prior written approval from the COR. All pest control operations shall comply with all applicable federal, state, and local regulations governing chemical use and safety.
- All pruning debris, clippings, fallen branches, and other materials generated during tree and shrub care activities shall be collected, removed from the site, and disposed of in accordance with applicable environmental regulations.

Irrigation

- The contractor shall perform sprinkler system startup services at the beginning of each irrigation season. Startup shall include inspection and testing of all system components, including valves, controllers, sensors, and sprinkler heads, to ensure proper operation. The Contractor shall adjust sprinkler heads for correct coverage, verify water pressure, and program automatic timers in accordance with Government-approved schedules.
- The contractor shall respond to all service or repair requests within one (1) business day of notification by the COR. Emergency repairs that present a risk of property damage or excessive water waste shall be addressed immediately upon notification.

- Repairs shall include, but are not limited to, replacement or adjustment of sprinkler heads, repair of broken or leaking lines, correction of pressure and valve issues, and reprogramming of control systems. After written request from COR, Contractor shall provide an estimate for irrigation repair services to COR who will then submit to the CO, and no work shall commence without prior authorization from the CO. Approved irrigation system repair services shall be invoiced against Not to Exceed CLIN
- At the conclusion of each irrigation season, the contractor shall perform a complete sprinkler system blowout and winterization. This service shall include shutting off the main water supply, draining all lines, removing residual water with compressed air, and ensuring all system components are secured and protected against freeze damage.
- The contractor shall maintain complete documentation of all sprinkler system startup, repair, and winterization activities. Documentation shall include the dates of service, descriptions of work performed, hours expended, parts replaced, and materials used. Such records shall be provided to the COR upon request.

Pest and Disease Control - Lawn Areas

- The contractor shall be responsible for the monitoring and identification of pests affecting lawn and turf areas. Pests include, but are not limited to, insects (such as wasps, grubs, mosquitos, chinch bugs, etc.), fungal diseases (such as dollar spot, rust, brown patch, etc.), and other biological agents that negatively impact turf health or appearance.
- The contractor shall conduct monthly inspections of all lawn areas throughout the growing season to identify the presence or risk of pest infestations or disease conditions. Findings shall be documented and reported to the COR for review and approval prior to any treatment or chemical application.
- The contractor shall, upon request of the COR, conduct pest and disease control services as needed and at additional cost. After written request from COR, Contractor shall provide an estimate for pest and disease control services to COR who will then submit to the CO, and no work shall commence without prior authorization from the CO. Cost for pest and disease control services shall be for labor, materials, and equipment and be invoiced separately from monthly invoices. Pest and disease control services shall be invoiced against Not to Exceed CLIN.
- No pesticide, fungicide, or other chemical control product(s) shall be applied without prior written approval from the CO. All applications shall be performed in accordance with the manufacturer's recommendations, applicable environmental regulations, and all federal laws governing chemical use and employee safety.
- The contractor shall immediately implement corrective measures for pest or disease outbreaks upon receipt of approval from the CO. Treatments may include chemical applications, cultural adjustments (such as aeration or improved drainage), or other integrated pest management (IPM) practices as appropriate.
- All pest control products, quantities applied, and treatment areas shall be documented in detail. Records shall include the date of application, product name, EPA registration number, active ingredients, weather conditions, and personnel performing the work. Copies of such documentation shall be provided to the COR upon request.
- The contractor shall ensure all pest control operations are performed in a manner that prevents damage to adjacent plantings, hardscapes, structures, and irrigation systems, and that does not pose risk to personnel or the public.

Work Scheduling and Notifications

- The contractor shall develop and submit a monthly lookahead schedule outlining all planned maintenance, repair, and service activities to be performed during the upcoming month. The schedule shall identify the anticipated dates, specific locations, and types of work to be conducted. The schedule shall be submitted to the COR for review and coordination no later than five (5) business days prior to the start of each month.
- The contractor shall ensure that all work is performed in accordance with the approved schedule unless prior written authorization for deviation is granted by the COR. Any necessary adjustments to the schedule resulting from weather conditions, equipment issues, or unforeseen site circumstances shall be communicated to the COR immediately upon identification.
- The contractor shall provide advance notification to the COR at least seventy-two (72) hours prior to the commencement of any work that may impact facility operations, public access, or safety. This includes, but is not limited to, spraying operations, large equipment usage, or any activity that may restrict traffic or pedestrian movement.
- Failure to provide timely updates or notifications may be considered non-compliance with contract requirements and may result in a Contractor Deficiency Report (CDR) and additional appropriate corrective action as determined by the COR and Contracting Officer.

Unacceptable Performance and Corrections

- The contractor shall ensure that all work performed meets the requirements, standards, and frequencies specified in this PWS. Any work determined by the COR to be unsatisfactory or non-compliant shall be corrected or re-performed by the contractor within seventy-two (72) hours of notification, at no additional cost to the Government.
- Failure by the contractor to correct identified deficiencies within the specified timeframe may result in deductions from payment, issuance of a stop-work order, or other contractual remedies as determined appropriate by the Contracting Officer (CO).
- Repeated instances of unacceptable performance, neglect, or non-compliance may constitute grounds for termination of the contract in accordance with applicable FAR provisions.

Damages

- The contractor shall be fully responsible for any and all damage to Government property, facilities, structures, equipment, irrigation systems, landscaping, hardscapes, or other site improvements resulting from the Contractor's operations, negligence, or failure to exercise due care during performance of work under this contract.
- The contractor shall repair or replace all damaged property to its original condition and functionality, at the Contractor's own expense and to the satisfaction of the COR. All repairs shall be completed within a timeframe approved by the COR.
- The contractor shall immediately notify the COR of any damage discovered or caused during the course of work, regardless of severity or cause.
- The contractor shall be properly licensed and insured in accordance with all applicable federal regulations.

Interference with Operations

- The contractor shall perform all work in a manner that does not disrupt or interfere with the normal operations, activities, or mission of the EPVAHCS. The contractor shall coordinate all work with the COR to ensure minimal impact to staff, patients, and visitors.
- The contractor shall maintain clear and unobstructed access to all buildings, entrances, sidewalks, roadways, parking lots, loading docks, and emergency routes at all times. Work that may cause temporary obstructions or safety hazards shall be scheduled and approved in advance by the COR.
- Any activity that may generate excessive noise, dust, odor, or vibration shall be controlled and performed only during approved hours or as directed by the COR to prevent disturbance to medical center operations.

Lost and Found

- The contractor shall immediately report and turn in all personal or Government property found on the premises to the COR or the VA Police. Under no circumstances shall the Contractor or its employees remove, retain, or dispose of any found items.
- All found property shall be handled in accordance with EPVAHCS's established policies and procedures for lost and found items. The contractor shall ensure that all employees performing work under this contract are aware of and comply with these requirements.

Safety and Accident Reporting

- The contractor shall perform all work in compliance with applicable Occupational Safety and Health Administration (OSHA) regulations, Department of Veterans Affairs (VA) safety standards, and all federal and local safety requirements.
- The contractor shall implement and maintain appropriate safety measures to protect its employees, Government personnel, patients, visitors, and property during the performance of this contract.
- The contractor shall develop, implement, and maintain a written site-specific safety plan addressing all tasks, equipment, and hazards associated with the performance of this contract. The safety plan shall be made available to the COR upon request and shall be updated as conditions, operations, or regulations change.
- The contractor shall ensure that all employees are properly trained in the safe operation of equipment, use of personal protective equipment (PPE), and procedures applicable to their assigned tasks. Safety briefings shall be conducted as necessary to reinforce compliance and awareness.
- The contractor shall immediately report to the COR any accident, injury, property damage, or near-miss incident occurring during performance of this contract, regardless of severity. Written follow-up documentation describing the incident, corrective actions taken, and measures to prevent recurrence shall be submitted to the COR within twenty-four (24) hours of the incident. Additionally, the contractor shall maintain an accident and incident log documenting all accidents, injuries, property damage incidents, and near-miss events that occur during contract performance. The log shall be made available for review by the COR upon request.

Environmental Compliance

- The contractor shall conduct all work activities in full compliance with applicable federal environmental laws and regulations, as well as VA environmental policies and procedures. All work shall be performed in a manner that prevents pollution, protects natural resources, and minimizes environmental impact.
- The contractor shall not store any fuels, oils, fertilizers, pesticides, herbicides, or other chemicals on VA property at any time. All chemical products shall be transported to the site only for immediate use and removed upon completion of the task or at the end of each workday.
- Prior to the use of any chemical product, including fertilizers, pesticides, or herbicides, the Contractor shall submit a current MSDS or SDS to the COR for review and approval. No chemical product shall be applied without written authorization from the CO.
- The contractor shall ensure that all chemicals used are properly labeled and handled in accordance with manufacturer specifications and applicable environmental and safety regulations. Spill-prevention practices shall be implemented during transport and application activities.
- In the event of a spill or release of any chemical substance, the contractor shall immediately contain and clean up the spill, notify the COR, and if required, contact appropriate regulatory authorities. All cleanup efforts shall be completed at no additional cost to the Government and in accordance with applicable environmental standards.
- The contractor shall not discharge or permit the discharge of debris, soil, water, chemicals, or other materials into storm drains, sanitary sewers, or natural waterways. Runoff control measures shall be employed as necessary to prevent erosion, silting, or contamination.
- The contractor shall maintain accurate records of all chemical applications, including the product name, quantity, date and location of application, weather conditions, and name of the applicator. These records shall be provided to the COR upon request.
- All waste materials, including grass clippings, leaves, branches, and empty chemical containers, shall be removed from the site and disposed of in accordance with all applicable environmental regulations and industry best management practices.

5. Quality Assurance

- The Government will conduct surveillance of the Contractor's performance through inspections, observation, and feedback to verify compliance with all requirements of this PWS. Surveillance may be performed during any phase of work and may be announced or unannounced at the discretion of the COR.
- The contractor shall develop and submit a written Quality Control Plan (QCP) to the COR for review and approval within thirty (30) calendar days of contract award. The QCP shall describe the Contractor's procedures for ensuring compliance with all contract requirements, identifying performance deficiencies, taking corrective actions, and maintaining quality throughout all phases of work.
- The QCP shall include, at a minimum, methods for internal inspection of work, corrective action tracking, documentation of inspections, and communication of quality-related issues to the COR. The approved QCP shall be implemented and maintained throughout the life of the contract.

- The Government will evaluate Contractor performance in accordance with the Performance Requirements Summary (PRS) table and applicable contract clauses. Failure to meet established performance standards may result in deductions, corrective action requirements, or other remedies as described in the contract.

9. Invoices

- Each monthly invoice shall be reviewed and approved by the COR prior to submission for payment processing. Upon COR approval, the contractor shall submit the invoice through Tungsten in accordance with VA invoicing procedures.
- All repair labor hours for troubleshooting and repairs shall be separately itemized and logged, and all parts and components billed under Not-to-Exceed CLIN shall have been pre-approved by the COR and determined fair and reasonable by the Contracting Officer prior to acquisition and invoicing.

10. Property Limits

- Please refer to the map below defining property limits.



B.3 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Comprehensive Grounds Maintenance Services Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027	12.00	MO		
0002	Tree Removal Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027	5.00	JB		
0003	Annual needed services, repairs, and emergencies. Contracting Officer (CO) will need to approve all of the work. Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027	0.00	JB		
0003AA	Lawn Mowing - as needed only upon request Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027	24.00	JB		
0003AB	Trimming and Edging - as needed only upon request Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027	24.00	JB		
0003AC		1.00	MO		

Lawn Aeration and Dethatching - to be completed once annually during the month of March			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
0003AD	4.00	JB	_____
Lawn Seeding - to be provided on a seasonal basis			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
0003AE	4.00	JB	_____
Street and Parking Lot Sweeping - to be provided on a seasonal basis			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
0003AF	12.00	MO	_____
Leaf and Debris Removal - provided monthly during the non-growing season as needed			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
0003AG	12.00	MO	_____
Weed Control and Removal			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
0003AH	8.00	JB	_____
Chemical Treatments and Application			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
0003AJ	12.00	MO	_____

Irrigation and Sprinkler System Startup Services				
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
0003AK	12.00	MO	_____	_____
Pest and Disease Control - Lawn Areas				
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1001	1.00	MO	_____	_____
Comprehensive Grounds Maintenance Services				
Contract Period: Option 1 POP Begin: 06-15-2027 POP End: 06-14-2028				
1002	5.00	JB	_____	_____
Tree Removal				
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003	0.00	JB	_____	_____
Annual needed services, repairs, and emergencies.				
Contracting Officer (CO) will need to approve all of the work.				
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AA	24.00	JB	_____	_____
Lawn Mowing - as needed only upon request				
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AB	24.00	JB	_____	_____

Trimming and Edging - as needed only upon request				
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AC	1.00	MO	_____	_____
Lawn Aeration and Dethatching - to be completed once annually during the month of March			_____	_____
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AD	4.00	JB	_____	_____
Lawn Seeding - to be provided on a seasonal basis			_____	_____
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AE	4.00	JB	_____	_____
Street and Parking Lot Sweeping - to be provided on a seasonal basis			_____	_____
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AF	12.00	MO	_____	_____
Leaf and Debris Removal - provided monthly during the non-growing season as needed			_____	_____
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AG	12.00	MO	_____	_____
Weed Control and Removal			_____	_____
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027				
1003AH	8.00	JB	_____	_____
			_____	_____

Chemical Treatments and Application			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
1003AJ	0.00	JB	_____
Irrigation and Sprinkler System Startup Services			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
1003AK	12.00	MO	_____
Pest and Disease Control - Lawn Areas			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2001	1.00	MO	_____
Comprehensive Grounds Maintenance Services			
Contract Period: Option 2 POP Begin: 06-15-2028 POP End: 06-14-2029			
2002	5.00	JB	_____
Tree Removal			
Contract Period: Base POP Begin: 06-15-2028 POP End: 06-14-2029			
2003	0.00	JB	_____
Annual needed services, repairs, and emergencies.			
Contracting Officer (CO) will need to approve all of the work.			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AA	24.00	JB	_____

Lawn Mowing - as needed only upon request			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AB	24.00	JB	_____
Trimming and Edging - as needed only upon request			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AC	1.00	MO	_____
Lawn Aeration and Dethatching - to be completed once annually during the month of March			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AD	0.00	JB	_____
Lawn Seeding - to be provided on a seasonal basis			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AE	4.00	JB	_____
Street and Parking Lot Sweeping - to be provided on a seasonal basis			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AF	12.00	MO	_____
Leaf and Debris Removal - provided monthly during the non-growing season as needed			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AG	12.00	MO	_____

Weed Control and Removal			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AH	8.00	JB	_____
Chemical Treatments and Application			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AJ	12.00	MO	_____
Irrigation and Sprinkler System Startup Services			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
2003AK	12.00	MO	_____
Pest and Disease Control - Lawn Areas			
Contract Period: Base POP Begin: 06-15-2026 POP End: 06-14-2027			
3001	1.00	MO	_____
Comprehensive Grounds Maintenance Services			
Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3002	5.00	JB	_____
Tree Removal			
Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3003	0.00	JB	_____
Annual needed services, repairs, and emergencies.			
Contracting Officer (CO) will need to approve all of the work.			

Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3003AA	24.00	JB	_____
Lawn Mowing - as needed only upon request			
Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3003AB	24.00	JB	_____
Trimming and Edging - as needed only upon request			
Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3003AC	1.00	MO	_____
Lawn Aeration and Dethatching - to be completed once annually during the month of March			
Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3003AD	4.00	JB	_____
Lawn Seeding - to be provided on a seasonal basis			
Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3003AE	4.00	JB	_____
Street and Parking Lot Sweeping - to be provided on a seasonal basis			
Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030			
3003AF	12.00	MO	_____

Leaf and Debris Removal - provided monthly during the non-growing season as needed Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030				
3003AG	12.00	MO	_____	_____
Weed Control and Removal Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030				
3003AH	8.00	JB	_____	_____
Chemical Treatments and Application Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030				
3003AJ	12.00	JB	_____	_____
Irrigation and Sprinkler System Startup Services Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030				
3003AK	12.00	MO	_____	_____
Annual needed services, repairs, and emergencies. Contracting Officer (CO) will need to approve all of the work. Contract Period: Option 3 POP Begin: 06-15-2029 POP End: 06-14-2030				
4001	12.00	MO	_____	_____
Comprehensive Grounds Maintenance Services Contract Period: Option 4 POP Begin: 06-15-2030 POP End: 06-14-2031				

4002	5.00	JB	_____	_____
			_____	_____
Tree Removal				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003	0.00	JB	_____	_____
			_____	_____
Annual needed services, repairs, and emergencies.				
Contracting Officer (CO) will need to approve all of the work.				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AA	24.00	JB	_____	_____
			_____	_____
Lawn Mowing - as needed only upon request				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AB	24.00	JB	_____	_____
			_____	_____
Trimming and Edging - as needed only upon request				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AC	1.00	MO	_____	_____
			_____	_____
Lawn Aeration and Dethatching - to be completed once annually during the month of March				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AD	4.00	JB	_____	_____
			_____	_____
Lawn Seeding - to be provided on a seasonal basis				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				

4003AE	4.00	JB	_____	_____
			_____	_____
Street and Parking Lot Sweeping - to be provided on a seasonal basis				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AF	12.00	MO	_____	_____
			_____	_____
Leaf and Debris Removal - provided monthly during the non-growing season as needed				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AG	12.00	MO	_____	_____
			_____	_____
Weed Control and Removal				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AH	8.00	JB	_____	_____
			_____	_____
Chemical Treatments and Application				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AJ	12.00	MO	_____	_____
			_____	_____
Irrigation and Sprinkler System Startup Services				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				
4003AK	12.00	MO	_____	_____
			_____	_____
Pest and Disease Control - Lawn Areas				
Contract Period: Option 4				
POP Begin: 06-15-2030				
POP End: 06-14-2031				

	GRAND TOTAL _____ _____
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SECTION C - CONTRACT CLAUSES

C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	JAN 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT 2018
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2015
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION)	NOV 2025
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.219-14	LIMITATIONS ON SUBCONTRACTING (DEVIATION)	NOV 2025
52.219-16	LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (DEVIATION)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-41	SERVICE CONTRACT LABOR STANDARDS (DEVIATION)	NOV 2025
52.222-42	STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES	MAY 2014

52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (DEVIATION)	NOV 2025
52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (DEVIATION)	NOV 2025
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.229-3	FEDERAL, STATE, AND LOCAL TAXES (DEVIATION)	SEP 2025
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-3	PROTEST AFTER AWARD	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR 1984
52.237-3	CONTINUITY OF SERVICES	JAN 1991
52.244-6DEV	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	OCT 2025
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES		

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days.

(End of Clause)

C.3 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of Clause)

C.4 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—
 - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
 - (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical

to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) Iran prohibitions.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.5 VAAR 852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR VERIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (NOV 2022)

(a) *Definition.* for the Department of Veterans Affairs, “*Service-disabled Veteran-owned small business concern or SDVOSB*”:

(1) Means a small business concern—

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.201, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been verified for ownership and control pursuant to 38 CFR part 74 and is listed in VA's Vendor Information Pages (VIP) database at <https://www.vetbiz.va.gov/vip/>; and

(v) The business will comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size and government contracting programs at 13 CFR parts 121 and 125, provided that any reference therein to a service-disabled veteran-owned small business concern or SDVO SBC, is to be construed to apply to a VA verified and VIPlisted SDVOSB, unless otherwise stated in this clause.

(2) The term "Service-disabled Veteran" means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term "small business concern" has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term "small business concern owned and controlled by Veterans with service-connected disabilities" has the meaning given the term "*small business concern owned and controlled by service-disabled veterans*" under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)), except that for a VA contract the firm must be listed in the VIP database (see paragraph (a)(1)(iv) of this clause).

(b) General.

(1) Offers are solicited only from VIP-listed SDVOSBs. Offers received from entities that are not VIP-listed SDVOSBs at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a VIP-listed SDVOSB who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) Representation. Pursuant to 38 U.S.C. 8127(e), only VIP-listed SDVOSBs are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible SDVOSB as defined in this clause, 38 CFR part 74, and VAAR subpart 819.70.

(d) Agreement. When awarded a contract action, including orders under multiple award contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size

and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting requirements in 13 CFR 121.406(b) and 13 CFR 125.6. Unless otherwise stated in this clause, a requirement in 13 CFR parts 121 and 125 that applies to an SDVO SBC, is to be construed to also apply to a VIP-listed SDVOSB. For the purpose of limitations on subcontracting, only VIP-listed SDVOSBs (including independent contractors) shall be considered eligible and/or “similarly situated” (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required certification requirements in this solicitation (see 852.219–75 or 852.219–76 as applicable). These requirements are summarized as follows:

(1) *Services.* In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not VIP-listed SDVOSBs (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/ VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(2) *Supplies/products.*

(i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) *General construction.* In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs.

(4) *Special trade construction contractors.* In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not VIP-listed SDVOSBs.

(5) *Subcontracting.* An SDVOSB must meet the NAICS size standard assigned by the prime contractor and be listed in VIP to count as similarly situated. Any work that a first tier VIP-listed SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) *Required limitations on subcontracting compliance measurement period.* An SDVOSB shall comply with the limitations on subcontracting as follows:

[X] By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(f) *Joint ventures.* A joint venture may be considered eligible as an SDVOSB if the joint venture is listed in VIP and complies with the requirements in 13 CFR 125.18(b), provided that any requirement therein that applies to an SDVO SBC is to be construed to apply to a VIP-listed SDVOSB. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) *Precedence.* The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the requirements of the SBA Program for SDVO SBCs, and the VA Veterans First Contracting Program.

(h) *Misrepresentation.* Pursuant to 38 U.S.C. 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406–2 Causes for Debarment).

(End of Clause)

C.6 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) [X] *Services.* In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) [] *General construction.* In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count

towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ *Special trade construction contractors.* In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

(i) Referral to the VA Suspension and Debarment Committee;

(ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and

(iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of Clause)

C.7 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

Service Contract Wage Determination 2015 – 5229 Revision No. 28 Dated 12/03/2025

SECTION E - SOLICITATION PROVISIONS

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	SEP 2023
852.209-70	ORGANIZATIONAL CONFLICTS OF INTEREST	OCT 2020
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023

E.2 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

E.3 ADDENDUM TO FAR 52.212-1 INSTRUCTIONS TO OFFERORS – COMMERCIAL ITEMS

The following is incorporated into 52.212-1 as an addendum to this solicitation:

TECHNICAL QUESTIONS:

Questions shall be accepted by the Government in writing via email no later than **May 18, 2026, 1:00PM**. Please list “**Technical Questions – 36C25726Q0483 – El Paso Grounds Maintenance**” in the subject line of the e-mail and send to Melanie Williams, Contract Specialist, at melanie.williams5@va.gov. Please include in your questions the section of the solicitation/page number that your question is referencing.

OFFER SUBMITTAL INSTRUCTIONS:

- 1) Offeror shall submit offers by Due Date/Time specified in Block 8 of the Standard Form (SF) 1449 of the solicitation via email to Melanie Williams at melanie.williams5@va.gov.
- 2) By signing the Standard Form (SF) 1449/Solicitation, Contractor attests that they have a complete understanding of all solicitation requirements. Additionally, Offerors shall submit a signed copy of each solicitation amendment, when applicable.
- 3) When applicable, offerors shall return a signed copy of each amendment to the solicitation.
- 4) Offeror must complete, sign, and return FAR Clause 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION).
- 5) In accordance with VAAR 819.7003 Eligibility. (DEVIATION)., all offerors shall be certified by the SBA as a Small Disadvantaged Veteran Owned Business (SDVOSB).
- 6) Offeror shall provide a Capability Statement, maximum 3 pages, which can validate Technical Capability. This document should include a description of technical approach, methodology, and technique to carry out the requirements in the Performance Work Statement (PWS).
- 7) Provide references for up to three (3) contracts within the last three (3) years of similar size and scope. This information shall include the contract number, agency, point of contact, phone number and email address.
- 8) Provide copies of applicable permits, licenses, and certifications in accordance with the PWS.
- 9) **Pricing:** Contractor shall submit flat rate pricing, per line item.

Period for acceptance of offers: The offeror agrees to hold the prices in its offer firm for 90 calendar days from the date specified for receipt of offers.

Items 1 through 9 of this section describe the minimum solicitation requirements (complete offer). Failure to submit a complete offer may result in removal from further consideration for award.

(End of Addendum)

E.4 BASIS FOR AWARD

- A.** This is a competitive best value selection using Comparative Analysis evaluation procedures in accordance with Revolutionary FAR Overhaul (RFO) 12.203(c)(2) where:
1. Quotations will be compared to one another to determine which provides the best benefit to the Government.
 2. The Government reserves the right to consider a quotation other than the lowest price that provides additional benefit(s).
 3. Quotations may exceed minimum requirements of the solicitation. The Government reserves the right to select a quotation that provides benefit to the Government that exceeds the minimum requirements of the solicitation but is not required to do so. Each response must meet the minimum requirements of the solicitation.
 4. By submission of its offer, the offeror accedes to all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements as listed within the SOW. Failure to meet a requirement or inability to perform or provide all services requested shall result in an offer being removed from further consideration.
 5. Offerors must clearly identify any exception to the solicitation terms and conditions and provide a complete accompanying rationale.
- B.** Prior to conducting the evaluation, the Contracting Officer will review the quote to ensure a complete offer was received, as outlined within ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL ITEMS. Failure to submit a complete offer in the manner listed will result in the removal from further consideration for award.
- C.** Evaluation of offers – The government will perform a comparative analysis of the services quoted. The Government will compare quotes to one another to select the service that best benefits the Government in fulfilling the requirement. The evaluation of Government requirements outlined in this Request for Quote will be as follows:
1. **Technical Capability:**
 - i. Explanation of how contract management, communication and collaboration with the Government, documentation, and reporting, and overall technical approach will function to meet the requirements in SOW.
 2. **Past Performance:**
 - i. This factor considers the quality of the Offeror's past performance in carrying out relevant work. Emphasis will be on recent, relevant past performance. Recent is defined as work performed within the last 5 years. Relevant is defined as work similar in size and scope of the work described in the Statement of Work.
 - i. The following information should be included:
 - Agency/Company name
 - Contract Dollar Value
 - Period of Performance
 - Name, Address, e-mail address, telephone & fax number of reference

- ii. Past performance information may also be obtained from other sources available to the Government to include, but not limited to, CPARS (Contractor Performance Assessment Reporting System) or other databases, interviews with Program Managers, and other Contracting Officers. Lack of past performance will not be considered a “negative.”
- iii. Offerors with no Past Performance will not receive a Favorable nor Unfavorable evaluation.

3. **Price:**

- i. Price (s) will be evaluated for completeness and reasonableness.
- D.** Offerors are cautioned to submit sufficient information and, in the format specified in the Addendum to 52.212-1 Instruction to Offerors section. Offerors may be asked to clarify certain aspects of their quote (for example, the relevance of past performance information) or respond to adverse past performance information to which the offeror has not previously had an opportunity to respond. Adverse past performance is defined as past performance information that supports a less than satisfactory rating on any evaluation element or any unfavorable comments received from sources without a formal rating system. Communication conducted to resolve minor or clerical errors will not constitute discussions and the contracting office reserves the right to award a contract without the opportunity for quote revision.
- E.** For the purposes of the award of this requirement, the Government intends to evaluate the Option to Extend Services under FAR 52.217-8 as follows:
- The evaluation will consider the possibility that the option can be exercised at any time and can be exercised in increments of one to six months, but not for more than a total of six months during the life of the contract.
 - The evaluation will assume that the prices for any option exercised under FAR 52.217-8 will be at the same rates as those in effect under the contract at the time the option is exercised.
 - The evaluation will therefore assume that the addition of the price or prices of any possible extension or extensions under FAR 52.217-8 to the total price of all offers relative to each other will not affect the ranking of offers based on price, unless, after reviewing the offers, the Government determines that there is a basis for finding otherwise.
 - This evaluation will not obligate the Government to exercise any option under FAR 52.217-8.
- F.** For the purposes of the award of this requirement, the Government intends to evaluate the Option to Extend the Term of the Contract under FAR 52.217-9 as follows:
- The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options shall not obligate the Government to exercise the option(s).

(End of Provision)

E.5 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Technical Capability
Past Performance
Price

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

E.6 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

E.7 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions*. As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)